

# HOUSE . . . . . No. 4354

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, August 7, 2025.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 324) of Christine P. Barber and Mary S. Keefe relative to registered interior designers, reports recommending that the accompanying bill (House, No. 4354) ought to pass.

For the committee,

TACKEY CHAN.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act relative to advancing the profession of commercial interior design.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 44 of chapter 7C of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by striking out the definition of “Designer”, and inserting in  
3   place thereof the following definition:-

4           “Designer”, an individual, corporation, partnership, sole proprietorship, joint stock  
5   company, joint venture, or other entity engaged in the practice of architecture, landscape  
6   architecture, registered commercial interior design or engineering, which satisfies the following:

7           (i) if an individual, the individual is a registered architect, landscape architect,  
8   commercial interior designer or engineer;

9           (ii) if a partnership, a majority of all the partners are persons who are registered  
10   architects, landscape architects, commercial interior designers or engineers;

11           (iii) if a corporation, sole proprietorship, joint stock company or other entity, the majority  
12   of the directors or a majority of the stock ownership and the chief executive officer are persons

who are registered architects, landscape architects, commercial interior designers or engineers,  
and the person to have the project in his or her charge is registered in the discipline required for  
the project; or

(iv) if a joint venture, each joint venturer satisfies the requirements of this section.

SECTION 2. Said section 44 of said chapter 7C of the General Laws, as so appearing, is  
hereby further amended by striking out the definition, “Interior Designer”, and inserting after the  
definition of “Board”, the following definition:-

“Commercial Interior Designer”, an individual, corporation, partnership, sole  
proprietorship, joint stock company, joint venture or other entity engaged in the practice of  
commercial interior design, who may serve as the prime consultant for projects that primarily  
involve construction or other work relating to the nonstructural interior elements of a building or  
structure and who provides services that do not require a registered architect, landscape architect  
or engineer provided, however, that a commercial interior designer shall demonstrate  
competence by completion of a nationally-recognized certification.

SECTION 3. Said section 44 of said chapter 7C of the General Laws, as so appearing, is  
hereby further amended by inserting the word “commercial” before the phrase “interior  
designer” every time it appears.

SECTION 4. Section 45 of said chapter 7C of the General Laws, as so appearing, is  
hereby amended by striking out subsection (a) and inserting in place thereof the following  
subsection:-

(a) There shall be, within the executive office for administration and finance, a designer selection board, consisting of: 10 members appointed by the governor, 3 of whom shall be registered architects in the commonwealth, architects who are unregistered in the commonwealth but have not less than 10 years' experience as an architect registered by a National Council of Architectural Registration Boards member board or architect emeritus, 1 of whom shall be a certified interior designer with not less than 10 years of experience as a National Council for Interior Design Qualifications certified Massachusetts interior designer, 3 of whom shall be registered engineers, or currently unregistered but with not less than 10 years' experience as a registered engineer, and 1 of whom shall be a representative of the public who is not architect, engineer or construction contractor. Three additional members shall be designated as follows: 1 registered architect selected by the American Institute of Architects Massachusetts; 1 registered engineer selected by the government affairs council of design professionals; and 1 general contractor selected by the Associated General Contractors of Massachusetts, Inc. No member shall have a record of disciplinary action. Members shall be appointed for terms of 2 years and may be reappointed for not more than 1 successive 2-year term. The director shall designate a representative, who shall be the project manager in the case of a project under the jurisdiction of the office of project management, to act as a nonvoting member of the board for each project under their jurisdiction under consideration by the board.

SECTION 5. Chapter 13 of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 110. (a) There shall within the division of occupational licensure be a board of registration of commercial interior designers, consisting of 5 members appointed by the governor, 4 of whom shall have been engaged in the practice of interior design for a period of

not less than 10 years prior to their appointment and shall be registered commercial interior designers and 1 of whom shall be a member of the general public, subject to the provisions of section 9B. Members of the board shall be residents of the commonwealth.

(b) Each member of the board shall serve for a term of 3 years and until the governor appoints a successor. No member shall be appointed to more than 2 consecutive full terms; provided, however, that a member appointed for less than a full term may serve 2 full terms in addition to such part of a full term.

(c) A member may be removed by the governor for neglect of duty, misconduct or malfeasance or misfeasance in office after written notice of the charges against them and an opportunity to be heard. Upon the death, resignation or removal for cause of any member of the board, the governor shall fill the vacancy for the remainder of that member's term.

(d) The members of the board shall serve without compensation but shall be reimbursed for actual and necessary expenses reasonably incurred in the performances of their duties as members or on behalf of the board.

(e) The board shall hold not less than 2 regular meetings annually and may hold special meetings as required. Time, place and notice of all meetings shall be as required by rules or by-laws determined by the board. The board shall organize and choose from its own members, a chair, a vice chair and a secretary at the first regular annual meeting. A quorum shall consist of 3 members.

(f) The board may make such rules or by-laws, not inconsistent with law, as it may deem necessary in the performance of its duties, including rules and regulations governing academic and practical experience. The board shall have a seal and its members may administer oaths in

the performance of its duties. The board shall have power to summon witnesses, take testimony and require proofs concerning all matters within its jurisdiction. The board shall annually file with the commissioner of occupational licensure a report of its proceedings, which shall include an itemized statement of all receipts and expenses of the board for the year.

SECTION 6. Chapter 112 of the General Laws, as so appearing, is hereby amended by adding the following 12 sections:-

Section 290. As used in sections 291 to 301, inclusive, the following words shall have the following meanings unless the context clearly requires otherwise:

“Board”, the board of registration of commercial interior designers established in section 110 of chapter 13.

"Building", an enclosed structure that has human occupancy or habitation as its principal purpose as defined in the state building code.

“Certificate of registration”, the 2-year license to practice commercial interior design issued by the board.

“Commercial interior design”, the design and planning of interior spaces in buildings subject to the 780 CMR state building code.

"International Building Code", the edition of the International Building Code, issued by the International Code Council, as most recently adopted by the commonwealth, including Massachusetts amendments.

“Nonstructural interior construction”, non-seismic or non-structural construction elements within a building or structure which does not require structural bracing, does not affect

99 the structural integrity of the building, is primarily concerned with the interior aspects of design,  
100 and does not include any load-bearing components.

101 “Practice of registered commercial interior design”, in relation to performing or agreeing  
102 to perform or holding one’s self out as able to perform professional services in connection with  
103 obtaining a building permit independent of an architect licensed under sections 60A to 60Q,  
104 inclusive, for the design and construction of nonstructural interior construction, including  
105 consultations, investigations, evaluations, preliminary studies, aesthetic design and preparation  
106 of plans, specifications and contract documents, in accordance with all codes and regulations, co-  
107 ordination of building systems, administration of construction contracts and any other similar  
108 service or combination of services in connection with the design and construction of  
109 nonstructural interior construction, regardless of whether one or all of these services are being  
110 performed and regardless of whether these services are performed in person or as the directly  
111 head of an office or organization performing them; provided the practice of commercial interior  
112 design or registered commercial interior design shall not include the practice of architecture or  
113 engineering as defined in chapter 112. The practice of registered commercial interior design does  
114 not include services that alter the building’s occupancy classification and use designation,  
115 structure, or primary fire, life safety, mechanical, electrical, plumbing or exits as defined by the  
116 780 CMR state building code, or other related primary building systems except as explicitly  
117 permitted by applicable law.

118 “Registered commercial interior designer”, any person who has been licensed to engage  
119 in the practice of commercial interior design as herein defined.

“Registered Commercial Interior Designer Emeritus”, an honorary title issued to a licensed commercial interior designer who has retired from the active practice of commercial interior design in the commonwealth.

Section 291. Upon approval by the board, an individual who has passed the interior design examination administered by the National Council for Interior Design Qualification (NCIDQ) may use the title Registered Commercial Interior Designer. Such individual shall, upon satisfactory completion of the aforementioned requirements and any other requirements and qualifications as deemed necessary by the board, send to the board a copy of documentation of the proof of: (i) passage of the NCIDQ exam; (ii) satisfactory evidence of graduation from a program accredited by the Council of Interior Design Accreditation and of such practical experience in commercial interior design work as the board may by regulation prescribe. In lieu of evidence of graduation from a Council of Interior Design Accreditation program, the applicant may submit satisfactory evidence of such other academic experience, practical experience, or both, as the board may by regulation prescribe; (iii) any certifications awarded to the individual by the National Council for Interior Design Qualification; (iv) and any other documentation as required by the board. Such documentation shall include, but not be limited to, the individual’s name, mailing address and email address; provided, however, that such individual shall update the board of any changes to such information as they occur. Such documentation shall be placed on file with the division of occupational licensure.

Section 292. (a) Each applicant seeking to become a registered commercial interior designer shall pay to the board, upon filing their original application, a fee to be determined annually per the provisions of section 3B of chapter 7. After verification of the documentation required pursuant to section 291 and receipt of the application fee, the board shall issue a



certificate of registration for a period of 2 years. The commissioner of occupational licensure or their designee, as the custodian of any documentation required by section 291, shall enforce this section and may use said documentation, or any lack thereof, as deemed necessary, notwithstanding any general or special law or rule or regulation to the contrary.

A registered commercial interior designer shall be required to complete continuing education courses. Continuing education shall be gained through coursework delivered in education credits. The quantity and content designation of education credits shall be determined by the board.

It shall be unlawful for any individual who is not approved by the board to use the title Registered Commercial Interior Designer or any title or device indicating that an individual is a registered commercial interior designer unless they are registered under the provisions of sections 290 through 301, inclusive.

Nothing in sections 290 through 301, inclusive, shall prohibit a person from performing commercial interior design services or using the title commercial interior designer, commercial interiors consultant, commercial interior decorator or a similar title; provided, however, that the word “registered” shall not be used in conjunction with such a title.

A registered commercial interior designer shall not practice architecture as defined in section 60A of chapter 112, engineering as defined in section 81D of chapter 112, or any other profession regulated under the laws of the commonwealth, unless specifically authorized to do so under sections 290 through 301, inclusive, or to prepare, sign or seal plans with respect to such practice or in connection with any governmental permits unless licensed or otherwise permitted to do so under such laws.

Nothing in sections 290 through 301, inclusive, shall prohibit an architect as defined in section 60A of chapter 112 from offering or performing services of a registered commercial interior designer.

Nothing in sections 290 through 301, inclusive, shall prohibit any person from performing professional services limited to the planning, design and implementation of kitchen and bath spaces or the specification of products for kitchen and bath spaces.

Nothing in sections 290 through 301, inclusive, shall prohibit an employee of a retail establishment from providing consultation regarding interior design, decoration, furnishings, furniture or fixtures offered for sale by such establishment from receiving compensation from such establishment.

(b) Any individual violating sections 290 to 301, inclusive, may be punished by a fine of not more than \$500 or by imprisonment in a jail or house of correction for not more than 3 months, or both, or by revocation of registration by the board.

Section 293. Every two years, on or about May 1, the board shall mail to every licensed commercial interior designer or licensed commercial interior designer emeritus registered in the commonwealth a blank application for renewal of certificate of registration. Such blanks properly filled out shall be returned to the board on or before the following first day of August. Each such blank shall be accompanied by a renewal fee to be determined annually per the provisions of section 3B of chapter 7. After verification of the facts stated on the renewal blanks, the board shall issue a certificate of annual registration, dated September 1, and which shall expire on August 31 of the two-year period following. Any holder of a certificate of registration who fails to renew their application within 60 days the notification by the board that

their license has expired, shall, before again engaging in the practice of registered commercial interior design within the commonwealth, be required to register anew, pay a fee as determined under the aforementioned provision and may be required by the board to be re-examined.

Section 294. Each registered commercial interior designer shall have a seal of a design authorized by the board. All plans, specifications and reports prepared by a registered commercial interior designer or under their supervision shall be stamped with the impression of such seal. A registered commercial interior designer shall impress their seal on any plans, specifications or reports if their certificate of registration is in full force and if they were the author of such plans, specifications or reports or were responsible for their preparation.

Section 295. The board may revoke, suspend or annual the provisional registration or certificate of registration, or reprimand, censure or otherwise discipline a registrant, upon proof satisfactory to the board that:

(a) the holder of such provisional registration or certificate of registration is practicing in the commonwealth in violation of any provision of sections 290 through 301, inclusive, or any rule or regulation promulgated under authority thereof by the board;

(b) such provisional registration or certificate of registration was obtained by fraud or misrepresentation;

(c) any money or thing of value, except fees prescribed or authorized by said sections, was paid or received to secure the issuance of such provisional registration or certificate of registration;

(d) the holder of such provisional registration or certificate of registration has been guilty of fraud or deceit, or of gross negligence, incompetence or misconduct, in the practice of registered commercial interior design;

(e) the holder of such a provisional registration or certificate of registration has permitted or suffered their original seal to be affixed to any plans, specifications or drawings not prepared by them or under their personal supervision by their regularly employed subordinates;

(f) the holder of a provisional registration or certificate of registration has affixed their signature to plans, drawings, specifications or other instruments of service which have not been prepared by them or in their office, or under their immediate and responsible direction, or has permitted their name to be used for the purpose of assisting any person to evade the provisions of this chapter; or

(g) the holder of such provisional registration or certificate of registration has an interest in the manufacture, sale or installation of any component or process in a project for which they are the registered commercial interior designer, which interest they have not disclosed to their client in such manner as the board shall by regulation prescribe.

Section 296. Charges against a registered commercial interior designer involving any matter coming within the jurisdiction of the board shall be in writing and shall be filed with the board. Such charges, at the discretion of the board, shall be heard within 30 days after being so filed. The accused registered commercial interior designer shall have the right at such hearing to appear personally, with or without counsel, to cross-examine witnesses against them and to produce evidence and witnesses in their defense. The board shall set the time and place for such hearing and shall cause a copy of the charges, together with a notice of the time and place fixed

229 for the hearing, to be sent by registered mail to the accused registered commercial interior  
230 designer, at their latest place of residence or business known to the board, at least 10 days before  
231 such date. If after such hearing the board finds the accused registered commercial interior  
232 designer guilty of the charges, or any of them, it shall issue an order revoking, suspending or  
233 annulling the provisional registration or certificate of registration of the accused registered  
234 commercial interior designer, or reprimanding, censuring or otherwise disciplining them. If the  
235 board finds them not guilty it shall enter an order dismissing the charges. If such order be that a  
236 provisional registration or certificate of registration be revoked, suspended or annulled, the board  
237 shall in writing so notify the state secretary and the clerk of the city or town in the  
238 commonwealth wherein such registered commercial interior designer has their principal place of  
239 business.

240 The board may re-issue a provisional registration or certificate of registration to any  
241 person whose provisional registration or certificate of registration has been revoked. Application  
242 for the re-issuance of a provisional registration or certificate of registration shall be made in such  
243 manner as the board may direct, and shall be accompanied by a fee to be determined annually per  
244 the provision of section 3B of chapter 7.

245 Section 297. Every provisional registration or certificate of registration issued and  
246 remaining in force, under any provision of sections 290 through 301, inclusive, shall be prima  
247 facie evidence in all courts of the commonwealth that the person named therein is legally  
248 registered as a registered commercial interior designer for the period for which it is issued, and  
249 of all other facts therein stated.

Section 298. The determination of any person, or of any officer, board or commission of the commonwealth or of any political subdivision thereof, who makes a contract to have services performed for them or it, that the principal services to be performed thereunder involve the practice of registered commercial interior design, shall be final, unless said determination was made in bad faith, or was fraudulent, capricious or arbitrary.

Section 299. Annually, not later than January 31, the board shall prepare a roster showing the names and the last known places of business of all registered commercial interior designers in the commonwealth. Such roster shall be posted on a publicly available website.

Section 300. (a) Upon receipt of a written application, the board may grant a certificate of registration as a commercial interior designer emeritus to an interior designer who has retired from the active practice of commercial interior design in the commonwealth. To be eligible for a certificate of registration as a commercial interior designer emeritus, the applicant shall: (i) submit an application together with a fee prescribed by the board; (ii) have been a commercial interior designer in good standing in the commonwealth at the time of their retirement; (iii) be not less than 65 years of age; (iv) have been a registered a commercial interior designer in the commonwealth for not less than 10 years; (v) have relinquished their license to practice commercial interior design; and (vi) satisfy any other requirements as may be prescribed by the board.

(b) A registered commercial interior designer emeritus shall neither engage in nor hold themselves out as engaging in the practice of commercial interior design. A commercial interior designer emeritus shall be exempt from the continuing education requirements established in section 292.

(c) A registered commercial interior designer emeritus seeking reinstatement as a commercial interior designer shall: (i) file an application for reinstatement with the board; (ii) pay an administrative fee that shall be determined by the board; and (iii) comply with education or other requirements established by the board.

Section 301. The board shall be charged with the enforcement of sections 290 to 301, inclusive. If any person refuses to obey any decision of the board, the attorney general shall, upon request of the board, file a petition for the enforcement of such decision in equity in Suffolk county superior court or in the county in which the defendant resides or has a place of business. After due hearing, the court shall order the enforcement of such decision or any part thereof, if legally and properly made by the board.

SECTION 7. Notwithstanding any general or special law to the contrary, an individual who has completed not less than 10 years of full-time, diversified, verifiable professional experience in the profession of interior design shall be eligible for provisional registration; provided, however, that the individual shall apply for registration not more than 12 months after the first annual meeting of the board of registration of commercial interior designers following the effective date of this act. The applicant, upon review and consent of the board, may be issued a provisional registration and be given 3 calendar years from the first annual meeting of the board following the effective date of this act to provide substantial proof to the board of successful passage of the National Council for Interior Design Qualification examination, at which time full registration shall be granted. If proof of passage is not provided to the board within the 3-year time period, the applicant's provisional registration shall be revoked and reapplication, including satisfaction of all requirements at the time of re-application, shall be required for the individual to receive registration. During the time period of provisional

295 registration, the individual shall maintain all current fees and uphold all requirements for  
296 registration and renewal until such time as the examination requirement is fulfilled. The board  
297 may adopt its own rules and regulations governing academic and practical experience, including  
298 but not limited to those guidelines published from time to time by the National Council for  
299 Interior Design Qualification. The board may also adopt the examinations and recommended  
300 grading procedures of the National Council for Interior Design Qualification.

301           SECTION 8. Section 4 shall not affect or reduce the tenure of members of the designer  
302 selection board serving at the time of the effective date of this act.